

**MERCED DIP LENDER LLC vs. DAVID C. SOWELS**  
**Case No. CU26-03381**

Motion to Appear Pro Hac Vice

TENTATIVE RULING

The unopposed motion for Jeremiah C. Hollembeak, Esq. to appear pro hac vice is GRANTED.

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**CLAUDIA GONZALEZ v. MEYER CORPORATION U.S. and DIEGO PEREZ**  
**Case No. FCS058246**

Plaintiff's Motion to Conduct Discovery of MEYER's Financial Condition

TENTATIVE RULING

Plaintiff CLAUDIA GONZALEZ moves for leave to conduct discovery of Defendant MEYER CORPORATION U.S.'s ("MEYER") financial condition. Plaintiff relevantly alleges causes of action against MEYER for discrimination and harassment in violation of the Fair Employment and Housing Act, based on alleged derogatory comments and conduct from Defendant DIEGO PEREZ ("PEREZ"), Plaintiff's supervisor at MEYER.

**Legal Standard.** Code of Civil Procedure section 3295 states that a plaintiff may not conduct pretrial discovery of a defendant's financial condition for purposes of assessing punitive damages unless that plaintiff first obtains an order permitting discovery from the court. Such an order may only be granted upon motion "supported by appropriate affidavits" such that the court determines that the plaintiff has a substantial probability of prevailing on his claim for related damages.

To prevail on such a motion a plaintiff must demonstrate a substantial probability that he will prevail on his claim for punitive damages at trial; this requires the court to weight the evidence submitted in favor of and in opposition to the motion and find that it is very likely – not simply likely, but very likely – that the plaintiff will prevail on the punitive damages claim at trial. (*Jabro v. Superior Court* (2002) 95 Cal.App.4th 754, 758.) In turn, Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is "proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." "Malice" means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; "oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights; and "fraud" means intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code § 3294, subd. (c).) "Despicable" conduct refers to that which is "base, vile, or

contemptible” and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

**Objections to Evidence.** MEYER objects to several pieces of evidence in the Declaration of Chambord Benton-Hayes in Support of Motion. The Court only rules on those objections that it deems material.

MEYER’s #1-2, 17. Plaintiff cannot use her own interrogatory responses as evidence. (Code Civ. Proc., § 2030.410.) These objections are sustained.

MEYER’s #13, 29-32. What Plaintiff told Ms. Luciano is hearsay. (While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time.) These objections are sustained.

MEYER’s #14, 42, 44, 46. What Plaintiff told Ms. Calisa is hearsay. (While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time.) These objections are sustained.

**Likelihood of Proving Punitive Damages Against MEYER.** Where the above objections have been sustained, Plaintiff has presented insufficient admissible evidence to show that Defendant Perez made discriminatory or harassing statements as alleged.

As such, Plaintiff does not display a substantial probability of proving punitive damages against MEYER based upon the admissible evidence submitted with this motion.

**Conclusion.** Plaintiff’s motion is denied.

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